

## **CUSTOMER-FRIENDLY CLOUD SERVICES AGREEMENT**

This Cloud Services Agreement is between Harborline Data Platforms LLC ("Provider") and Atlas Retail Group, Inc. ("Customer").

### **1. TERM**

The Agreement begins February 1, 2026 and expires January 31, 2028. Renewal requires a written agreement signed by both parties at least thirty days before expiration. There is no automatic renewal.

### **2. SERVICES**

Provider will deliver the Harborline inventory forecasting platform, implementation, two production integrations, administrator training, and twenty-four-hour support for critical incidents. Acceptance occurs only after Customer completes written acceptance testing.

### **3. FEES**

The total contract value is USD 420,000. Provider invoices monthly in arrears and Customer pays undisputed invoices within forty-five days. Customer may withhold disputed amounts while the parties investigate.

### **4. SERVICE LEVELS**

Monthly uptime must be at least 99.95 percent. Priority 1 incidents require a fifteen-minute response and four-hour restoration target. Repeated SLA failures permit Customer to terminate without penalty and receive a prorated refund.

### **5. SECURITY AND PRIVACY**

Provider will maintain SOC 2 Type II certification, encrypt Customer Data in transit and at rest, conduct annual penetration testing, and notify Customer within twenty-four hours of a confirmed security incident. Provider must obtain written approval before adding a subprocessor.

### **6. DATA OWNERSHIP AND DELETION**

Customer owns all Customer Data. Within thirty days after termination, Provider will return Customer Data in a commonly readable format and permanently delete remaining copies, except where retention is legally required.

### **7. INDEMNIFICATION**

Provider will defend and indemnify Customer against third-party claims alleging that the Services infringe intellectual property rights or that Provider's breach of its security obligations caused unauthorized disclosure of Customer Data.

### **8. LIABILITY**

General liability is capped at two times fees paid during the prior twelve months. Liability for confidentiality breaches, security incidents caused by Provider, infringement indemnity, fraud, or willful misconduct is capped at four times such fees.

### **9. TERMINATION**

Customer may terminate for convenience with sixty days written notice and receive a prorated refund of prepaid unused fees. Either party may terminate an uncured material breach after thirty days written notice.

## **10. CONFIDENTIALITY**

Each party will protect Confidential Information using at least the same care used for its own similar information and no less than reasonable care.

## **11. GOVERNING LAW**

The laws of the State of New York govern this Agreement. Exclusive venue lies in state and federal courts located in New York County, New York.

## **12. NOTICES**

Legal notices to Provider must be sent to [legal@harborline.example](mailto:legal@harborline.example) and notices to Customer must be sent to [contracts@atlasretail.example](mailto:contracts@atlasretail.example).